COMMERCIAL AGREEMENT - RECORD 018

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-018

1. Recitals and defined terms

This Master Subscription Agreement is made between Helioscope Robotics, Inc. as Provider and Redwood Grocery Logistics Inc. as Customer, a grocery logistics business organised in California, contracting through Redwood Grocery Logistics Inc.. Redwood and the Provider have agreed that terms defined in the recitals and in Exhibit D carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

The Provider warrants to Redwood that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On timing, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Redwood is a California grocery logistics business with 9 sites, the Master Subscription Agreement devolves this to the site manager. Administration of this obligation for Redwood sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

Neither Redwood nor the Provider may treat Article 15 (Limitation of Liability) as permitting confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Procedurally, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Operating 9 sites, Redwood applies the Master Subscription Agreement at the point of delivery, as grocery logistics practice requires. For a customer of Redwood's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Article 17 (Transition Assistance) provides that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In application, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In grocery logistics the burden of this sits with operations, and Redwood discharges it across 9 sites under the Master Subscription Agreement. The Redwood file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

Nothing in Exhibit C entitles Redwood to assume that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. In substance, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. California is where Redwood runs grocery logistics operations across 9 sites, and the Master Subscription Agreement follows that footprint. The obligation as it applies to Redwood was tightened at signature, and Article 8 (Acceptance) carries the negotiated wording rather than the standard wording.

Redwood subscription agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Redwood price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
RED-P0001	part 7412-U	controller board	$322	20	100	dual sourced	no EOL commitment
RED-P0002	part 9439-P	controller board	$2,110	11	150	single source	no EOL commitment
RED-P0003	part 8030-O	encoder	$2,049	7	350	qualification in progress	last-time-buy notice 12 months
RED-P0004	part 5549-L	optical sensor	$430	21	200	dual sourced	last-time-buy notice 12 months
RED-P0005	part 3059-O	harness	$467	19	300	dual sourced	no EOL commitment
RED-P0006	part 3058-L	castor assembly	$1,932	21	150	single source	last-time-buy notice 12 months
RED-P0007	part 4200-R	harness	$552	15	350	dual sourced	last-time-buy notice 12 months

Redwood price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
RED-P0008	part 7089-K	optical sensor	$298	16	350	qualification in progress	EOL notice 6 months
RED-P0009	part 3023-V	optical sensor	$2,142	13	200	dual sourced	EOL notice 6 months
RED-P0010	part 9416-N	battery module	$275	20	450	dual sourced	no EOL commitment
RED-P0011	part 4954-K	battery module	$1,391	10	500	single source	no EOL commitment
RED-P0012	part 5300-C	gearbox	$1,639	6	50	single source	EOL notice 6 months
RED-P0013	part 9282-G	controller board	$1,179	24	100	qualification in progress	no EOL commitment
RED-P0014	part 9369-B	optical sensor	$2,116	6	150	dual sourced	no EOL commitment
RED-P0015	part 9282-X	drive unit	$406	20	250	single source	last-time-buy notice 12 months
RED-P0016	part 4035-T	harness	$2,233	10	350	dual sourced	EOL notice 6 months
RED-P0017	part 5686-K	battery module	$1,420	25	100	single source	EOL notice 6 months
RED-P0018	part 1821-J	encoder	$948	21	300	dual sourced	no EOL commitment
RED-P0019	part 3625-W	encoder	$1,325	5	50	dual sourced	no EOL commitment
RED-P0020	part 9335-K	harness	$2,007	23	250	qualification in progress	EOL notice 6 months
RED-P0021	part 4979-K	drive unit	$1,934	10	50	single source	EOL notice 6 months
RED-P0022	part 1565-Z	castor assembly	$970	7	200	dual sourced	EOL notice 6 months
RED-P0023	part 1015-V	optical sensor	$990	12	550	qualification in progress	no EOL commitment
RED-P0024	part 9732-H	harness	$152	25	250	single source	EOL notice 6 months
RED-P0025	part 9008-D	gearbox	$1,895	14	600	qualification in progress	last-time-buy notice 12 months
RED-P0026	part 6068-Q	battery module	$262	10	50	dual sourced	no EOL commitment
RED-P0027	part 3799-C	castor assembly	$1,790	23	150	single source	no EOL commitment
RED-P0028	part 7687-J	encoder	$1,700	17	400	dual sourced	no EOL commitment
RED-P0029	part 4748-T	battery module	$1,954	16	400	dual sourced	no EOL commitment
RED-P0030	part 9962-L	controller board	$2,213	14	250	qualification in progress	no EOL commitment
RED-P0031	part 1670-H	harness	$2,115	21	550	single source	EOL notice 6 months
RED-P0032	part 1090-I	castor assembly	$1,533	9	450	dual sourced	EOL notice 6 months
RED-P0033	part 2013-G	gearbox	$1,671	6	200	dual sourced	last-time-buy notice 12 months
RED-P0034	part 1833-O	optical sensor	$553	11	250	qualification in progress	last-time-buy notice 12 months
RED-P0035	part 1631-G	harness	$650	14	600	dual sourced	last-time-buy notice 12 months
RED-P0036	part 7432-H	optical sensor	$1,046	18	300	dual sourced	no EOL commitment
RED-P0037	part 9065-O	battery module	$1,289	16	50	dual sourced	EOL notice 6 months
RED-P0038	part 8255-C	encoder	$1,634	10	200	single source	last-time-buy notice 12 months
RED-P0039	part 3826-Z	encoder	$1,411	21	400	dual sourced	EOL notice 6

Redwood price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
RED-P0040	part 3989-J	optical sensor	$1,378	5	150	qualification in progress	no EOL commitment
RED-P0041	part 5771-X	encoder	$1,022	4	300	qualification in progress	EOL notice 6 months
RED-P0042	part 7991-H	controller board	$2,345	18	200	single source	last-time-buy notice 12 months
RED-P0043	part 1354-Z	gearbox	$318	24	500	single source	EOL notice 6 months
RED-P0044	part 4719-U	encoder	$1,540	25	50	single source	EOL notice 6 months
RED-P0045	part 6992-P	battery module	$2,063	4	400	qualification in progress	no EOL commitment
RED-P0046	part 2795-J	castor assembly	$2,322	23	300	single source	no EOL commitment

1. Recitals and defined terms - part 2 of 2

A further extract of the 1. Recitals and defined terms appears here, taken in order from the point at which the previous part ended. Nothing is restated from the earlier part.

Whatever caveat the 1. Recitals and defined terms carried at its head travels with these rows, and no additional caveat attaches to this part.

Redwood subscription agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Redwood price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
RED-P0047	part 6610-G	controller board	$2,111	6	400	dual sourced	last-time-buy notice 12 months
RED-P0048	part 8035-R	castor assembly	$1,921	25	450	qualification in progress	no EOL commitment
RED-P0049	part 6537-P	optical sensor	$879	23	450	dual sourced	last-time-buy notice 12 months
RED-P0050	part 3497-A	drive unit	$2,202	12	350	single source	EOL notice 6 months
RED-P0051	part 1630-R	castor assembly	$1,989	9	400	single source	no EOL commitment
RED-P0052	part 8161-P	drive unit	$115	17	350	single source	no EOL commitment
RED-P0053	part 4645-Z	gearbox	$763	25	500	single source	no EOL commitment
RED-P0054	part 6783-M	encoder	$745	19	300	single source	last-time-buy notice 12 months
RED-P0055	part 5815-I	gearbox	$1,390	24	250	qualification in progress	EOL notice 6 months
RED-P0056	part 9252-T	drive unit	$778	16	400	dual sourced	no EOL commitment
RED-P0057	part 1385-C	battery module	$855	10	350	qualification in progress	no EOL commitment
RED-P0058	part 7584-Q	drive unit	$1,445	10	350	qualification in progress	last-time-buy notice 12 months
RED-P0059	part 1212-Y	battery module	$2,057	20	550	dual sourced	EOL notice 6 months
RED-P0060	part 1070-T	gearbox	$1,461	13	600	qualification in progress	last-time-buy notice 12 months
RED-P0061	part 3202-T	gearbox	$1,763	23	50	single source	last-time-buy notice 12 months
RED-P0062	part 7062-W	castor assembly	$1,944	24	50	single source	no EOL commitment
RED-P0063	part 2658-I	gearbox	$1,196	25	350	dual sourced	no EOL commitment

Redwood price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
RED-P0064	part 5335-A	controller board	$1,178	20	250	single source	last-time-buy notice 12 months
RED-P0065	part 2740-A	harness	$994	12	550	dual sourced	last-time-buy notice 12 months
RED-P0066	part 8788-D	optical sensor	$492	5	400	qualification in progress	EOL notice 6 months
RED-P0067	part 3561-M	drive unit	$2,212	13	250	single source	no EOL commitment
RED-P0068	part 4892-E	drive unit	$907	12	50	dual sourced	EOL notice 6 months
RED-P0069	part 4563-D	encoder	$968	12	150	qualification in progress	last-time-buy notice 12 months
RED-P0070	part 1434-U	gearbox	$2,387	16	350	qualification in progress	EOL notice 6 months
RED-P0071	part 8182-A	encoder	$598	19	200	single source	no EOL commitment
RED-P0072	part 4968-K	drive unit	$1,137	20	300	dual sourced	EOL notice 6 months
RED-P0073	part 7739-N	battery module	$1,797	25	500	qualification in progress	last-time-buy notice 12 months
RED-P0074	part 1947-V	battery module	$2,033	18	500	dual sourced	EOL notice 6 months
RED-P0075	part 8111-P	gearbox	$562	15	550	dual sourced	no EOL commitment
RED-P0076	part 1587-O	castor assembly	$931	22	150	single source	no EOL commitment
RED-P0077	part 3962-V	harness	$473	10	400	dual sourced	no EOL commitment
RED-P0078	part 1711-H	controller board	$426	16	50	dual sourced	no EOL commitment
RED-P0079	part 4014-S	battery module	$901	25	50	qualification in progress	EOL notice 6 months
RED-P0080	part 2972-G	controller board	$961	24	550	single source	EOL notice 6 months
RED-P0081	part 6238-O	battery module	$2,060	21	450	dual sourced	no EOL commitment
RED-P0082	part 4662-X	encoder	$1,815	20	500	dual sourced	no EOL commitment
RED-P0083	part 3672-E	controller board	$579	18	600	qualification in progress	EOL notice 6 months
RED-P0084	part 2165-W	gearbox	$1,349	11	150	dual sourced	no EOL commitment
RED-P0085	part 7901-X	castor assembly	$1,772	10	300	dual sourced	last-time-buy notice 12 months
RED-P0086	part 9124-W	harness	$1,318	14	350	single source	no EOL commitment
RED-P0087	part 4016-T	optical sensor	$95	8	350	single source	last-time-buy notice 12 months
RED-P0088	part 6889-K	battery module	$2,397	21	300	qualification in progress	EOL notice 6 months
RED-P0089	part 9920-Q	harness	$1,655	17	550	single source	no EOL commitment
RED-P0090	part 4094-W	controller board	$1,624	23	600	single source	EOL notice 6 months
RED-P0091	part 9062-K	castor assembly	$1,732	6	400	single source	no EOL commitment
RED-P0092	part 3384-Q	gearbox	$1,560	16	50	single source	EOL notice 6 months

2. Scope of supply and orders

Save as Exhibit A otherwise provides, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As agreed, the obligation is absolute

rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 9 sites in grocery logistics, Redwood takes this obligation at site level rather than centrally under the Master Subscription Agreement. Nothing in the Redwood negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

As between Redwood and the Provider, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the mechanics, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Master Subscription Agreement reaches each of Redwood's 9 sites separately, which is how a grocery logistics operator in California administers it. Notices under Article 3 (Scope of Supply) go to the contracting entity named in the recital and not to any Redwood affiliate that may operate a site.

Redwood Grocery Logistics Inc. undertakes that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Redwood treats the obligation as a site-level matter across its 9 sites in California, consistent with the Master Subscription Agreement. Administration of this obligation for Redwood sits with the account team rather than with central contracts, and Article 12 (Intellectual Property) is where it is evidenced.

Redwood has agreed, and the Provider has accepted, that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. In terms of consequence, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 9 sites in California means Redwood applies the Master Subscription Agreement through its regional operations team rather than through head office. The Redwood relationship is managed against Article 3 (Scope of Supply) at each quarterly review, and any variance is minuted there rather than in the Order.

3. Delivery, title and risk

Subject to Article 17 (Transition Assistance), personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Strictly, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Master Subscription Agreement reaches each of Redwood's 9 sites separately, which is how a grocery logistics operator in California administers it. The Redwood relationship is managed against Article 5 (Delivery and Title) at each quarterly review, and any variance is minuted there rather than in the Order.

Save as Exhibit B otherwise provides, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As it bites, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Redwood runs 9 sites from California in grocery logistics, so the Master Subscription Agreement is administered locally and this clause is applied per site. Because Redwood operates in grocery logistics, the practical burden of this clause falls on its California operation, and Article 9 (Customer Obligations) governs how it is measured.

On the terms of Schedule 2, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As a remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Redwood treats the obligation as a site-level matter across its 9 sites in California, consistent with the Master Subscription Agreement. Because Redwood operates in grocery logistics, the practical burden of this clause falls on its California operation, and Article 9 (Customer Obligations) governs how it is measured.

The Provider warrants to Redwood that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On this point, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 9 sites in grocery logistics, Redwood takes this obligation at site level rather than centrally under the Master Subscription Agreement. For a customer of Redwood's size the clause is unremarkable, but Article 7 (Service Levels) is drafted more tightly here than in the Provider's standard form.

Redwood subscription agreement - Schedule 5 - Notices, Periods and Addressees

Redwood notice type	Subject	Period	Addressee	Method	Deemed given
RED-N001	non-renewal	90 days	General Counsel	portal notice	on the second business day after despatch
RED-N002	force majeure	35 days	Contracts Manager	portal notice	on the second business day after despatch
RED-N003	assignment request	80 days	General Counsel	email with acknowledgement	on the second business day after despatch
RED-N004	non-renewal	25 days	General Counsel	portal notice	on the second business day after despatch
RED-N005	change of control	35 days	General Counsel	email with acknowledgement	on receipt
RED-N006	price adjustment	85 days	Chief Operating Officer	email with acknowledgement	on receipt
RED-N007	assignment request	25 days	Contracts Manager	courier only	on the second business day after despatch
RED-N008	non-renewal	50 days	General Counsel	portal notice	on despatch
RED-N009	termination for cause	60 days	Contracts Manager	email with acknowledgement	on despatch
RED-N010	force majeure	20 days	General Counsel	courier and email	on receipt
RED-N011	breach	75 days	Contracts Manager	courier and email	on the second business day after despatch
RED-N012	price adjustment	5 days	designated account executive	courier and email	on receipt
RED-N013	termination for cause	25 days	General Counsel	email with acknowledgement	on despatch
RED-N014	price adjustment	50 days	Chief Operating Officer	courier and email	on the second business day after despatch
RED-N015	termination for cause	90 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
RED-N016	renewal election	35 days	designated account executive	email with acknowledgement	on despatch
RED-N017	breach	85 days	Contracts Manager	portal notice	on receipt
RED-N018	breach	20 days	Chief Operating Officer	courier and email	on despatch
RED-N019	assignment request	85 days	General Counsel	email with acknowledgement	on the second business day after despatch
RED-N020	termination for cause	75 days	designated account executive	portal notice	on receipt
RED-N021	breach	65 days	Contracts Manager	courier and email	on receipt
RED-N022	price adjustment	15 days	Contracts Manager	courier and email	on receipt
RED-N023	force majeure	85 days	designated account executive	courier and email	on receipt
RED-N024	breach	10 days	designated account executive	email with acknowledgement	on receipt
RED-N025	service credit claim	40 days	Contracts Manager	email with acknowledgement	on despatch
RED-N026	service credit claim	75 days	General Counsel	courier only	on despatch
RED-N027	termination for cause	60 days	General Counsel	courier only	on receipt
RED-N028	termination for cause	35 days	Contracts Manager	portal notice	on receipt
RED-N029	service credit claim	55 days	designated account executive	courier only	on the second business day after despatch
RED-N030	service credit claim	5 days	General Counsel	courier and email	on the second business day after despatch
RED-N031	assignment request	25 days	General Counsel	email with acknowledgement	on despatch
RED-N032	renewal election	5 days	Contracts Manager	courier and email	on receipt
RED-N033	change of control	75 days	Contracts Manager	courier only	on the second business day after

Redwood notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
RED-N034	price adjustment	90 days	designated account executive	portal notice	on receipt
RED-N035	renewal election	80 days	Chief Operating Officer	portal notice	on receipt
RED-N036	assignment request	15 days	Chief Operating Officer	email with acknowledgement	on despatch
RED-N037	service credit claim	15 days	Chief Operating Officer	portal notice	on receipt
RED-N038	termination for cause	45 days	Chief Operating Officer	portal notice	on despatch
RED-N039	renewal election	75 days	designated account executive	email with acknowledgement	on receipt
RED-N040	change of control	75 days	Contracts Manager	email with acknowledgement	on despatch
RED-N041	non-renewal	35 days	designated account executive	courier and email	on receipt
RED-N042	non-renewal	35 days	Chief Operating Officer	portal notice	on the second business day after despatch
RED-N043	service credit claim	15 days	Chief Operating Officer	courier only	on the second business day after despatch
RED-N044	price adjustment	5 days	General Counsel	portal notice	on receipt
RED-N045	force majeure	60 days	Chief Operating Officer	portal notice	on receipt
RED-N046	breach	20 days	General Counsel	courier and email	on despatch
RED-N047	price adjustment	25 days	Chief Operating Officer	courier only	on receipt
RED-N048	non-renewal	70 days	Contracts Manager	courier and email	on the second business day after despatch
RED-N049	change of control	40 days	General Counsel	courier and email	on the second business day after despatch
RED-N050	price adjustment	10 days	designated account executive	courier and email	on despatch
RED-N051	non-renewal	90 days	Contracts Manager	courier only	on despatch
RED-N052	force majeure	55 days	Contracts Manager	courier only	on the second business day after despatch
RED-N053	termination for cause	65 days	designated account executive	email with acknowledgement	on the second business day after despatch
RED-N054	service credit claim	45 days	designated account executive	email with acknowledgement	on despatch
RED-N055	price adjustment	80 days	General Counsel	email with acknowledgement	on receipt
RED-N056	change of control	75 days	Contracts Manager	portal notice	on the second business day after despatch
RED-N057	breach	65 days	General Counsel	courier and email	on the second business day after despatch
RED-N058	assignment request	75 days	Chief Operating Officer	portal notice	on the second business day after despatch
RED-N059	assignment request	10 days	Contracts Manager	portal notice	on receipt
RED-N060	breach	55 days	designated account executive	portal notice	on the second business day after despatch
RED-N061	price adjustment	35 days	General Counsel	email with acknowledgement	on the second business day after despatch
RED-N062	service credit claim	85 days	Chief Operating Officer	portal notice	on despatch
RED-N063	change of control	55 days	designated account executive	courier and email	on the second business day after despatch

Redwood notice type	Subject	Period	Addressee	Method	Deemed given
RED-N064	non-renewal	55 days	Chief Operating Officer	email with acknowledgement	on despatch
RED-N065	renewal election	30 days	designated account executive	email with acknowledgement	on despatch
RED-N066	change of control	55 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
RED-N067	breach	85 days	designated account executive	portal notice	on the second business day after despatch
RED-N068	service credit claim	10 days	Contracts Manager	portal notice	on despatch
RED-N069	breach	35 days	General Counsel	portal notice	on despatch
RED-N070	service credit claim	60 days	Contracts Manager	email with acknowledgement	on receipt
RED-N071	service credit claim	25 days	Contracts Manager	courier and email	on despatch
RED-N072	renewal election	70 days	Chief Operating Officer	courier only	on the second business day after despatch
RED-N073	termination for cause	60 days	Contracts Manager	courier and email	on receipt
RED-N074	service credit claim	25 days	Chief Operating Officer	portal notice	on receipt
RED-N075	assignment request	15 days	Contracts Manager	courier only	on despatch
RED-N076	breach	75 days	Contracts Manager	email with acknowledgement	on receipt
RED-N077	renewal election	65 days	Contracts Manager	email with acknowledgement	on receipt
RED-N078	renewal election	70 days	Chief Operating Officer	courier and email	on receipt

4. Fees, invoicing and escalation

Neither Redwood nor the Provider may treat Article 17 (Transition Assistance) as permitting a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Practically, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Redwood has 9 sites, and the Master Subscription Agreement treats each as a separate delivery point. Where Redwood has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

Save as Exhibit A otherwise provides, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As a remedy, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Running 9 sites in grocery logistics, Redwood takes this obligation at site level rather than centrally under the Master Subscription Agreement. Redwood has taken the point up once since signature; the correspondence is filed against Article 20 (Notices) and did not result in an amendment.

Except as Article 13 (Licences) permits, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Operationally, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Redwood treats the obligation as a site-level matter across its 9 sites in California, consistent with the Master Subscription Agreement. For a customer of Redwood's size the clause is unremarkable, but Article 16 (Term and Termination) is drafted more tightly here than in the Provider's standard form.

Redwood retains the right, notwithstanding Article 6 (Fees and Payment), to require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As it bites, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Operating 9 sites, Redwood applies the Master Subscription Agreement at the point of delivery, as grocery logistics practice requires. The obligation as it applies to Redwood was tightened at signature, and Article 17 (Transition Assistance) carries the negotiated wording rather than the standard wording.

5. Service levels and credits

The Provider has undertaken to Redwood that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, performance is measured against the exhibit and not against any statement made in the parties' correspondence. 9 sites in California means Redwood applies the Master Subscription Agreement through its regional operations team rather than through head office. Administration of this obligation for Redwood sits with the account team rather than with central contracts, and Article 8 (Acceptance) is where it is evidenced.

Save as Schedule 5 otherwise provides, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In application, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In grocery logistics the burden of this sits with operations, and Redwood discharges it across 9 sites under the Master Subscription Agreement. Redwood has taken the point up once since signature; the correspondence is filed against Article 18 (Assignment) and did not result in an amendment.

Redwood is not obliged, under Schedule 2, to accept that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As between them, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Redwood treats the obligation as a site-level matter across its 9 sites in California, consistent with the Master Subscription Agreement. The Redwood file records the position as at the last amendment, and Article 9 (Customer Obligations) is the reference a reviewer should cite when raising it.

For the purposes of the Master Subscription Agreement, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Strictly, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In grocery logistics the burden of this sits with operations, and Redwood discharges it across 9 sites under the Master Subscription Agreement. The obligation as it applies to Redwood was tightened at signature, and Article 7 (Service Levels) carries the negotiated wording rather than the standard wording.

6. Acceptance and change control

Neither Redwood nor the Provider may treat Article 13 (Licences) as permitting the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As agreed, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Site count matters here: Redwood has 9 sites, and the Master Subscription Agreement treats each as a separate delivery point. Notices under Article 4 (Orders and Quantities) go to the contracting entity named in the recital and not to any Redwood affiliate that may operate a site.

The Provider warrants to Redwood that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As agreed, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. 9 sites in California means Redwood applies the Master Subscription Agreement through its regional operations team rather than through head office. Where Redwood has raised a query the Provider has answered by reference to Article 11 (Data and Telemetry), and the exchange is on the contract file.

The Provider warrants to Redwood that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. By design, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Redwood's 9 sites, since a grocery logistics operator administers the Master Subscription Agreement where the units work. The Redwood relationship is managed against Article 3 (Scope of Supply) at each quarterly review, and any variance is minuted there rather than in the Order.

For the purposes of the Master Subscription Agreement, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As it bites, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 9 sites, Redwood applies the Master Subscription Agreement at the point of

delivery, as grocery logistics practice requires. Redwood has taken the point up once since signature; the correspondence is filed against Article 6 (Fees and Payment) and did not result in an amendment.

Redwood subscription agreement - Exhibit A - Fee Schedule and Annual Escalator

Redwood fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
RED-F001	charge dock	21	$8,385	$176,085	3.6%	annually each January
RED-F002	gateway appliance	36	$8,508	$306,288	5.8%	not escalated
RED-F003	charge dock	32	$3,606	$115,392	4.3%	annually each January
RED-F004	charge dock	19	$8,138	$154,622	5.7%	annually each January
RED-F005	AMR-400 heavy unit	29	$1,204	$34,916	2.6%	on renewal only
RED-F006	fleet controller	20	$1,607	$32,140	3.4%	not escalated
RED-F007	fleet controller	36	$8,962	$322,632	4.5%	annually on the anniversary
RED-F008	AMR-200 mobile unit	21	$7,807	$163,947	3.6%	annually on the anniversary
RED-F009	charge dock	21	$1,307	$27,447	5.8%	not escalated
RED-F010	charge dock	14	$8,084	$113,176	3.7%	annually on the anniversary
RED-F011	fleet controller	31	$7,462	$231,322	5.0%	annually each January
RED-F012	fleet controller	30	$9,616	$288,480	4.7%	annually each January
RED-F013	gateway appliance	8	$4,117	$32,936	4.8%	not escalated
RED-F014	charge dock	31	$8,692	$269,452	4.0%	annually each January
RED-F015	AMR-400 heavy unit	28	$7,718	$216,104	4.6%	annually each January
RED-F016	AMR-200 mobile unit	19	$8,146	$154,774	4.0%	annually each January
RED-F017	fleet controller	17	$8,216	$139,672	2.7%	not escalated
RED-F018	tote carrier	7	$5,199	$36,393	2.7%	annually on the anniversary
RED-F019	AMR-200 mobile unit	2	$2,225	$4,450	4.4%	annually each January
RED-F020	AMR-200 mobile unit	15	$1,474	$22,110	2.7%	on renewal only
RED-F021	lift attachment	15	$7,343	$110,145	2.4%	not escalated
RED-F022	AMR-400 heavy unit	23	$6,461	$148,603	2.0%	on renewal only
RED-F023	charge dock	25	$1,502	$37,550	2.6%	annually each January
RED-F024	AMR-400 heavy unit	14	$8,194	$114,716	3.0%	annually each January
RED-F025	fleet controller	2	$8,250	$16,500	3.6%	not escalated
RED-F026	charge dock	17	$3,949	$67,133	4.7%	annually on the anniversary
RED-F027	gateway appliance	31	$6,800	$210,800	5.7%	annually each January
RED-F028	charge dock	24	$3,789	$90,936	3.5%	annually each January
RED-F029	tote carrier	23	$6,157	$141,611	4.2%	annually on the anniversary
RED-F030	charge dock	8	$9,055	$72,440	5.3%	not escalated
RED-F031	gateway appliance	18	$9,379	$168,822	5.5%	annually each January
RED-F032	gateway appliance	36	$2,766	$99,576	2.2%	not escalated
RED-F033	fleet controller	39	$3,644	$142,116	3.7%	annually on the anniversary
RED-F034	AMR-200 mobile unit	31	$3,767	$116,777	2.6%	annually each January
RED-F035	charge dock	6	$8,635	$51,810	3.2%	not escalated
RED-F036	fleet controller	35	$5,671	$198,485	4.3%	annually on the

Redwood fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
						anniversary
RED-F037	safety scanner kit	41	$6,556	$268,796	4.5%	not escalated
RED-F038	AMR-400 heavy unit	20	$1,264	$25,280	4.5%	annually each January
RED-F039	gateway appliance	36	$7,728	$278,208	3.0%	annually each January
RED-F040	tote carrier	23	$5,407	$124,361	5.5%	on renewal only
RED-F041	safety scanner kit	40	$3,795	$151,800	2.9%	annually on the anniversary
RED-F042	AMR-400 heavy unit	30	$4,735	$142,050	3.0%	annually each January
RED-F043	AMR-200 mobile unit	11	$5,846	$64,306	5.8%	not escalated
RED-F044	AMR-200 mobile unit	30	$4,192	$125,760	4.6%	annually each January
RED-F045	AMR-200 mobile unit	19	$7,393	$140,467	5.4%	on renewal only
RED-F046	fleet controller	6	$4,955	$29,730	3.2%	on renewal only
RED-F047	lift attachment	41	$7,677	$314,757	3.4%	on renewal only
RED-F048	tote carrier	38	$7,805	$296,590	5.7%	annually on the anniversary
RED-F049	tote carrier	22	$4,413	$97,086	3.5%	not escalated
RED-F050	safety scanner kit	40	$7,511	$300,440	2.6%	annually each January
RED-F051	AMR-400 heavy unit	9	$7,662	$68,958	2.3%	annually on the anniversary
RED-F052	safety scanner kit	8	$8,578	$68,624	4.3%	annually each January
RED-F053	gateway appliance	4	$6,269	$25,076	3.3%	annually on the anniversary
RED-F054	AMR-200 mobile unit	4	$4,295	$17,180	5.0%	annually each January
RED-F055	gateway appliance	14	$7,491	$104,874	4.2%	on renewal only
RED-F056	AMR-200 mobile unit	37	$4,765	$176,305	5.2%	not escalated
RED-F057	gateway appliance	28	$1,410	$39,480	3.8%	on renewal only
RED-F058	AMR-400 heavy unit	9	$2,120	$19,080	3.1%	annually each January
RED-F059	tote carrier	7	$3,903	$27,321	3.1%	annually each January
RED-F060	safety scanner kit	16	$6,129	$98,064	3.4%	on renewal only
RED-F061	charge dock	26	$2,486	$64,636	2.2%	not escalated
RED-F062	tote carrier	36	$6,467	$232,812	3.5%	annually on the anniversary
RED-F063	charge dock	8	$1,373	$10,984	4.1%	annually on the anniversary
RED-F064	AMR-200 mobile unit	36	$5,911	$212,796	2.4%	on renewal only
RED-F065	lift attachment	37	$8,056	$298,072	5.9%	on renewal only
RED-F066	gateway appliance	4	$9,018	$36,072	3.1%	annually on the anniversary
RED-F067	AMR-400 heavy unit	24	$2,339	$56,136	3.9%	on renewal only
RED-F068	tote carrier	4	$7,623	$30,492	5.7%	annually on the anniversary
RED-F069	AMR-200 mobile unit	23	$4,435	$102,005	3.6%	annually on the anniversary
RED-F070	gateway appliance	22	$3,609	$79,398	2.1%	not escalated
RED-F071	fleet controller	8	$6,586	$52,688	5.1%	not escalated
RED-F072	AMR-400 heavy unit	8	$1,615	$12,920	3.1%	annually on the anniversary
RED-F073	safety scanner kit	31	$4,123	$127,813	4.2%	annually on the anniversary
RED-F074	AMR-200 mobile unit	37	$4,932	$182,484	2.2%	annually on the anniversary
RED-F075	charge dock	18	$3,673	$66,114	4.2%	annually on the

Redwood fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
						anniversary
RED-F076	AMR-200 mobile unit	4	$1,799	$7,196	5.2%	on renewal only
RED-F077	safety scanner kit	12	$8,012	$96,144	3.9%	annually on the anniversary
RED-F078	AMR-400 heavy unit	17	$7,059	$120,003	4.3%	on renewal only
RED-F079	tote carrier	16	$5,095	$81,520	3.1%	not escalated
RED-F080	fleet controller	22	$5,474	$120,428	2.9%	annually each January
RED-F081	AMR-200 mobile unit	32	$8,364	$267,648	3.4%	not escalated
RED-F082	AMR-400 heavy unit	20	$1,905	$38,100	4.8%	annually each January
RED-F083	fleet controller	12	$7,775	$93,300	5.0%	annually on the anniversary
RED-F084	AMR-200 mobile unit	35	$7,699	$269,465	4.7%	not escalated
RED-F085	AMR-400 heavy unit	18	$2,934	$52,812	5.6%	annually each January
RED-F086	fleet controller	18	$4,386	$78,948	3.2%	annually each January
RED-F087	AMR-400 heavy unit	39	$1,866	$72,774	3.8%	on renewal only
RED-F088	AMR-400 heavy unit	16	$4,958	$79,328	2.9%	annually on the anniversary

7. Data, intellectual property and licences

Redwood bears the risk that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In substance, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. This bites at Redwood's 9 sites, since a grocery logistics operator administers the Master Subscription Agreement where the units work. Because Redwood operates in grocery logistics, the practical burden of this clause falls on its California operation, and Article 15 (Limitation of Liability) governs how it is measured.

Subject to Article 20 (Notices), the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As to enforcement, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Operating 9 sites, Redwood applies the Master Subscription Agreement at the point of delivery, as grocery logistics practice requires. Notices under Article 8 (Acceptance) go to the contracting entity named in the recital and not to any Redwood affiliate that may operate a site.

Redwood and the Provider agree that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Textually, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Redwood is a California grocery logistics business with 9 sites, the Master Subscription Agreement devolves this to the site manager. The obligation as it applies to Redwood was tightened at signature, and Article 16 (Term and Termination) carries the negotiated wording rather than the standard wording.

Except as Article 11 (Data and Telemetry) permits, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Tighter here than standard: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Redwood is a California grocery logistics business with 9 sites, the Master Subscription Agreement devolves this to the site manager. For a customer of Redwood's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

8. Indemnities and limitation of liability

As between Redwood and the Provider, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On any reading, the obligation is absolute rather than reasonable-endeavours, and the drafting was

amended at signature to make that plain. Redwood runs 9 sites from California in grocery logistics, so the Master Subscription Agreement is administered locally and this clause is applied per site. The Redwood file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

For the purposes of the Master Subscription Agreement, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Redwood runs 9 sites from California in grocery logistics, so the Master Subscription Agreement is administered locally and this clause is applied per site. Nothing in the Redwood negotiation history qualifies Article 3 (Scope of Supply), and a reviewer should not read the pre-signature drafts as doing so.

Redwood Grocery Logistics Inc. has notified the Provider that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On any reading, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This bites at Redwood's 9 sites, since a grocery logistics operator administers the Master Subscription Agreement where the units work. Nothing in the Redwood negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

Redwood Grocery Logistics Inc. undertakes that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Strictly, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 9 sites, Redwood applies the Master Subscription Agreement at the point of delivery, as grocery logistics practice requires. Where Redwood has raised a query the Provider has answered by reference to Article 8 (Acceptance), and the exchange is on the contract file.

Redwood subscription agreement - Schedule 2 - Sites and Operating Patterns

Redwood site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
RED-S001	Evergreen facility	12	2025-03-01	two shifts	shared	accepted with punch list
RED-S002	Granite facility	30	2024-03-27	two shifts	Provider furnished	pending acceptance
RED-S003	Meridian facility	18	2025-02-09	single shift	Provider furnished	not commenced
RED-S004	Dayton facility	32	2026-11-22	continuous	Customer furnished	not commenced
RED-S005	Evergreen facility	22	2025-12-20	continuous	Provider furnished	accepted with punch list
RED-S006	Evergreen facility	12	2024-05-20	two shifts	Customer furnished	accepted
RED-S007	Evergreen facility	34	2025-12-05	single shift	Provider furnished	accepted with punch list
RED-S008	Fathom facility	36	2025-04-01	two shifts	Customer furnished	accepted with punch list
RED-S009	Crestline facility	35	2025-12-20	single shift	Customer furnished	not commenced
RED-S010	Keystone facility	23	2026-07-10	continuous	Customer furnished	accepted
RED-S011	Larkspur facility	7	2026-07-09	two shifts	shared	pending acceptance
RED-S012	Larkspur facility	28	2026-07-26	single shift	Customer furnished	pending acceptance
RED-S013	Evergreen facility	21	2024-08-10	two shifts	Customer furnished	not commenced
RED-S014	Meridian facility	5	2024-09-02	continuous	shared	accepted
RED-S015	Keystone facility	20	2026-11-07	continuous	Customer furnished	not commenced
RED-S016	Harborline facility	24	2026-10-01	single shift	Provider furnished	not commenced
RED-S017	Fathom facility	28	2024-02-21	continuous	shared	pending acceptance
RED-S018	Crestline facility	4	2024-09-25	continuous	Customer furnished	accepted with punch list
RED-S019	Mesa facility	4	2025-09-18	continuous	Customer	pending

Redwood site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	acceptance
RED-S020	Juniper facility	26	2026-09-03	two shifts	Provider furnished	accepted with punch list
RED-S021	Crestline facility	13	2024-03-14	two shifts	Provider furnished	pending acceptance
RED-S022	Larkspur facility	37	2026-02-04	single shift	Customer furnished	pending acceptance
RED-S023	Dunbar facility	28	2025-07-26	continuous	shared	not commenced
RED-S024	Meridian facility	17	2026-08-15	two shifts	Provider furnished	not commenced
RED-S025	Mesa facility	27	2024-03-02	continuous	Customer furnished	accepted with punch list
RED-S026	Larkspur facility	22	2024-07-10	continuous	shared	accepted
RED-S027	Larkspur facility	9	2026-11-09	continuous	Customer furnished	accepted
RED-S028	Dayton facility	34	2026-11-19	single shift	Customer furnished	pending acceptance
RED-S029	Meridian facility	39	2024-04-13	two shifts	Customer furnished	accepted with punch list
RED-S030	Fathom facility	39	2024-10-22	two shifts	Customer furnished	not commenced
RED-S031	Evergreen facility	36	2024-03-14	two shifts	Provider furnished	not commenced
RED-S032	Evergreen facility	13	2025-07-08	single shift	Customer furnished	accepted with punch list
RED-S033	Dunbar facility	11	2025-03-06	single shift	shared	pending acceptance
RED-S034	Granite facility	35	2026-08-28	continuous	shared	accepted with punch list
RED-S035	Harborline facility	36	2024-11-03	single shift	shared	pending acceptance
RED-S036	Fathom facility	37	2025-11-16	continuous	shared	accepted
RED-S037	Meridian facility	14	2024-12-04	two shifts	Customer furnished	pending acceptance
RED-S038	Crestline facility	26	2025-08-28	two shifts	Provider furnished	accepted with punch list
RED-S039	Dayton facility	11	2025-03-15	continuous	Customer furnished	not commenced
RED-S040	Juniper facility	35	2026-06-16	continuous	shared	pending acceptance
RED-S041	Keystone facility	4	2026-10-01	continuous	Customer furnished	accepted
RED-S042	Larkspur facility	18	2025-06-17	single shift	shared	not commenced
RED-S043	Dunbar facility	15	2024-02-05	single shift	Provider furnished	pending acceptance
RED-S044	Dunbar facility	33	2024-10-02	continuous	Customer furnished	not commenced
RED-S045	Granite facility	28	2026-05-19	single shift	shared	accepted
RED-S046	Dunbar facility	9	2026-01-16	single shift	Customer furnished	pending acceptance
RED-S047	Granite facility	9	2025-07-03	single shift	Provider furnished	not commenced
RED-S048	Larkspur facility	7	2025-01-09	two shifts	shared	accepted
RED-S049	Fathom facility	35	2026-11-17	single shift	shared	accepted with punch list
RED-S050	Harborline facility	31	2024-10-18	single shift	shared	pending acceptance
RED-S051	Juniper facility	24	2025-01-16	continuous	Customer furnished	accepted
RED-S052	Harborline facility	15	2024-05-26	two shifts	shared	accepted
RED-S053	Granite facility	7	2026-05-17	two shifts	Customer furnished	not commenced
RED-S054	Dayton facility	20	2024-10-04	single shift	Customer furnished	pending acceptance
RED-S055	Larkspur facility	22	2026-08-04	single shift	Customer furnished	accepted
RED-S056	Keystone facility	36	2024-03-28	two shifts	Customer furnished	not commenced

Redwood site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
RED-S057	Fathom facility	15	2026-09-07	continuous	Provider furnished	accepted
RED-S058	Harborline facility	18	2026-05-23	continuous	Provider furnished	not commenced
RED-S059	Granite facility	16	2024-09-13	single shift	Customer furnished	pending acceptance
RED-S060	Juniper facility	6	2026-03-11	two shifts	shared	pending acceptance
RED-S061	Granite facility	12	2024-03-25	continuous	shared	accepted with punch list
RED-S062	Dayton facility	24	2026-07-18	single shift	Customer furnished	accepted with punch list
RED-S063	Larkspur facility	33	2024-01-14	single shift	Customer furnished	not commenced
RED-S064	Crestline facility	17	2026-12-12	single shift	Customer furnished	pending acceptance
RED-S065	Dayton facility	13	2025-12-12	continuous	shared	accepted with punch list
RED-S066	Dayton facility	38	2025-12-24	continuous	Customer furnished	accepted with punch list
RED-S067	Fathom facility	14	2026-09-08	single shift	Customer furnished	accepted with punch list
RED-S068	Juniper facility	22	2026-01-08	continuous	Provider furnished	not commenced
RED-S069	Harborline facility	20	2026-09-25	single shift	Provider furnished	accepted with punch list
RED-S070	Dayton facility	7	2024-09-23	two shifts	shared	accepted with punch list
RED-S071	Juniper facility	35	2024-08-25	continuous	Provider furnished	pending acceptance
RED-S072	Juniper facility	13	2026-08-14	two shifts	Provider furnished	pending acceptance
RED-S073	Meridian facility	29	2025-01-17	single shift	Customer furnished	pending acceptance
RED-S074	Dayton facility	29	2025-05-08	two shifts	shared	accepted with punch list
RED-S075	Mesa facility	9	2025-01-22	single shift	Provider furnished	not commenced
RED-S076	Granite facility	34	2024-03-06	continuous	shared	pending acceptance
RED-S077	Dayton facility	7	2025-12-24	continuous	Provider furnished	pending acceptance
RED-S078	Dayton facility	33	2026-12-02	two shifts	Customer furnished	not commenced
RED-S079	Mesa facility	26	2026-12-24	two shifts	Provider furnished	pending acceptance
RED-S080	Meridian facility	38	2024-03-18	single shift	shared	not commenced
RED-S081	Dunbar facility	12	2024-02-01	continuous	shared	accepted
RED-S082	Fathom facility	6	2024-03-09	two shifts	Customer furnished	pending acceptance
RED-S083	Juniper facility	20	2026-09-24	single shift	Provider furnished	not commenced
RED-S084	Juniper facility	31	2025-03-19	continuous	Customer furnished	accepted

9. Term, termination and transition

Redwood pays the fees under Exhibit A in consideration of the Provider's undertaking that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Negotiated position: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 9 sites in California means Redwood applies the Master Subscription Agreement through its regional operations team rather than through head office. For a customer of Redwood's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Except as Article 6 (Fees and Payment) permits, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Operationally, a failure here is

remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Master Subscription Agreement reaches each of Redwood's 9 sites separately, which is how a grocery logistics operator in California administers it. Where Redwood has raised a query the Provider has answered by reference to Article 11 (Data and Telemetry), and the exchange is on the contract file.

Redwood has agreed, and the Provider has accepted, that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Per the amendment history, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Master Subscription Agreement reaches each of Redwood's 9 sites separately, which is how a grocery logistics operator in California administers it. For a customer of Redwood's size the clause is unremarkable, but Article 11 (Data and Telemetry) is drafted more tightly here than in the Provider's standard form.

Redwood retains the right, notwithstanding Article 5 (Delivery and Title), to require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Procedurally, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In grocery logistics the burden of this sits with operations, and Redwood discharges it across 9 sites under the Master Subscription Agreement. The Redwood file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

10. Assignment, notices and general

Under Article 9 (Customer Obligations) of the Master Subscription Agreement, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As it bites, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. California is where Redwood runs grocery logistics operations across 9 sites, and the Master Subscription Agreement follows that footprint. Redwood has taken the point up once since signature; the correspondence is filed against Article 19 (Confidentiality) and did not result in an amendment.

On a proper construction of Exhibit D, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As it bites, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Master Subscription Agreement reaches each of Redwood's 9 sites separately, which is how a grocery logistics operator in California administers it. The Redwood file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Redwood acknowledges that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. In terms of consequence, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Running 9 sites in grocery logistics, Redwood takes this obligation at site level rather than centrally under the Master Subscription Agreement. Redwood has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

Redwood bears the risk that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Practically, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Redwood's 9 sites, since a grocery logistics operator administers the Master Subscription Agreement where the units work. Because Redwood operates in grocery logistics, the practical burden of this clause falls on its California operation, and Article 3 (Scope of Supply) governs how it is measured.